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UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. **ROBERT F. KENNEDY, JR.,** Secretary, U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES, Defendant.	Case No.: CV-25-03367-PHX-SMB **FOURTH AMENDED COMPLAINT** **(Jury Trial Demanded)**

I. INTRODUCTION

1. This is an action for employment discrimination based on race, sex, religion, age, and disability; retaliation for engaging in protected activity under federal anti-discrimination and whistleblower laws; interference with and retaliation for

exercising rights under the Family and Medical Leave Act; and unlawful governmental burdening of Plaintiff's sincere religious exercise in violation of the Religious Freedom Restoration Act and the First Amendment to the U.S. Constitution.

2. Plaintiff alleges that Defendants, acting through the Indian Health Service ("IHS"), subjected him to a continuous pattern of retaliatory adverse personnel actions, including placing him on indefinite non-duty status, stripping him of his core duties, and creating a hostile work environment, immediately after he engaged in protected EEO and whistleblower activities. Plaintiff further alleges that these actions substantially burdened his sincerely held religious beliefs and were taken without the due process required by law.

3. This amendment is filed to consolidate claims, name the proper defendants only, and clarify the statutory bases for relief. Plaintiff withdraws all claims previously asserted under 18 U.S.C. §§ 1001 and 1519.

II. PARTIES

4. Plaintiff Kevin D. Turnage is a citizen of the United States and a resident of Gilbert, Arizona. At all times relevant to this Complaint, Plaintiff was a career GS-0610-12 employee of the Indian Health Service serving as a Nurse Consultant / Policy & Procedures Officer at the Phoenix Indian Medical Center ("PIMC").

5. Defendant Robert F. Kennedy, Jr. is the Secretary of the U.S. Department of Health and Human Services ("HHS"). He is named in his official capacity only.

6. Defendant Indian Health Service is a federal agency within HHS and is Plaintiff's employing agency.

III. JURISDICTION AND VENUE

7. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. §§ 1331 (federal question) and 1343(a)(4) (civil rights).
8. Jurisdiction is specifically conferred by Title VII of the Civil Rights Act of 1964, the Age Discrimination in Employment Act ("ADEA"), the Americans with Disabilities Act ("ADA") as incorporated by the Rehabilitation Act of 1973, the Family and Medical Leave Act ("FMLA"), the Whistleblower Protection Act ("WPA"), the Civil Service Reform Act ("CSRA"), the Religious Freedom Restoration Act ("RFRA"), and the First Amendment.
9. Venue is proper in the District of Arizona pursuant to 28 U.S.C. § 1391(b)(2) because a substantial part of the events giving rise to the claims occurred in Arizona.
10. This is a "mixed case" within the meaning of 5 U.S.C. § 7702(a), involving appealable adverse personnel actions and claims of unlawful discrimination.
11. Plaintiff has exhausted his administrative remedies. The Equal Employment Opportunity Commission issued a final decision on his appeal (EEOC Appeal No. 2024004239) on September 2, 2025. This action is timely filed within 90 days of receipt of that decision.

IV. FACTUAL BACKGROUND

A. Employment

12. Plaintiff has been a federal employee since January 18, 2011, and an employee of the IHS since July 2017. He accepted the GS-0610-12 supervisory position at PIMC on March 28, 2022.

B. Protected Activities

13. Activity 1: On March 21, 2023, Plaintiff sent an email to PIMC executive leadership reporting sexual harassment and a hostile work environment.
14. Activity 2: On April 13, 2023, Plaintiff filed a formal EEO complaint (Agency No. HHS-IHS-0296-2023) alleging discrimination and retaliation.
15. Activity 3: On May 25, 2025, Plaintiff served a formal Protected Disclosure Notice on PIMC officials Clinton Pope, Endreya McCabe, and Debra Ward-Lund.
16. Activity 4: Throughout June 2025, Plaintiff made a series of protected disclosures to external oversight bodies, including the Office of Special Counsel (OSC), HHS Office of Inspector General (OIG), Centers for Medicare & Medicaid Services (CMS), and the Joint Commission regarding waste, fraud, and dangers to patient safety.

C. Retaliatory Actions

17. PIMC management officials, including Debra Ward-Lund and Brandi Benjamin, were aware of Plaintiff's protected activities as of March 2023.
18. Adverse Action 1: On March 21, 2023, approximately 2 hours and 41 minutes after Plaintiff's email (Activity 1), Defendants placed him on administrative leave,

confiscated his credentials, and had him escorted from the premises.

19. Adverse Action 2: On March 2, 2023, Plaintiff received an unjustifiably low Performance Management Appraisal Plan (PMAP) rating.

20. Adverse Action 3: Between January and April 2023, Defendants deliberately delayed the processing of Plaintiff's FMLA paperwork for over two months.

21. Adverse Action 4: On May 28, 2025, just three days after Plaintiff's protected disclosure (Activity 3), PIMC official Clinton Pope ordered Plaintiff to remove himself from all approval workflows.

22. Adverse Action 5: Following Plaintiff's June 2025 disclosures, Dr. Endreya McCabe placed Plaintiff on a series of escalating punitive leaves: on June 27, 2025, administrative leave; on July 11, 2025, investigative leave for 30 days without written charges or a legitimate-interest analysis as required by 5 U.S.C. § 7513(b); and on November 24, 2025, indefinite "Notice Leave," resulting in a constructive suspension of over 108 workdays.

D. Religious Exercise

23. Plaintiff Kevin D. Turnage is a resident of Gilbert, Arizona and a practicing Christian whose religious beliefs are grounded in the teachings of the Holy Scriptures.

24. Plaintiff sincerely believes that honest labor and providing for one's household are religious duties commanded by God.

25. Plaintiff's religious beliefs are based on Biblical teachings including:

26. Genesis 2:15 – establishing labor as part of God's design for mankind.

27. 2 Thessalonians 3:10 – "if any would not work, neither should he eat."

28. 1 Timothy 5:8 – requiring a person to provide for his household.

29. Plaintiff believes that engaging in honest labor is both a moral and religious obligation and an essential part of living in accordance with his faith.

30. Defendant Robert F. Kennedy Jr., as Secretary of the United States Department of Health and Human Services, is responsible for administering federal programs and policies that directly affect Plaintiff.

31. Actions taken by Defendant and/or agencies under Defendant's authority have interfered with Plaintiff's ability to engage in lawful employment and fulfill his religious duty to work.

32. These governmental actions effectively prevent Plaintiff from performing honest labor and providing for his household as required by his sincerely held religious beliefs.

33. As a result, Plaintiff has been placed in the position of being unable to comply with his religious obligation to work and provide for his family.

34. Plaintiff believes that such interference constitutes a substantial burden on his religious exercise.

35. The Religious Freedom Restoration Act provides that the federal government may not substantially burden a person's exercise of religion unless the burden is the least restrictive means of furthering a compelling governmental interest.

36. Plaintiff has suffered harm and continues to suffer harm as a result of Defendant's actions.

37. Defendant's actions violate Plaintiff's rights under the First Amendment to the United States Constitution, the Religious Freedom Restoration Act, and Title VII of the Civil Rights Act.

38. Plaintiff brings this action to seek protection of his religious liberty and to obtain relief from government actions that interfere with his ability to live in accordance with his faith.

E. Discriminatory Animus

39. Plaintiff is a member of multiple protected classes: Caucasian (race), male (sex), Christian (religion), age 49 (at the time of events), and an individual with a disability (Type 1 Diabetes).

40. Similarly situated employees outside of Plaintiff's protected classes were treated more favorably under comparable circumstances.

41. The totality of Defendants' conduct, including the public security escort, confiscation of property, and indefinite removal from his position, created a hostile and abusive work environment.

V. CAUSES OF ACTION

COUNT I – DISPARATE TREATMENT (Title VII - Race, Sex, Religion)

42. Plaintiff incorporates the allegations in the preceding paragraphs.

43. Plaintiff is a member of protected classes, was qualified for his position, suffered

adverse employment actions, and similarly situated employees outside his protected classes were treated more favorably.

COUNT II – RETALIATION (Title VII)

46. Plaintiff incorporates the allegations in the preceding paragraphs.

47. Plaintiff engaged in protected activity, of which Defendants were aware.

48. In response, Defendants took materially adverse actions that would dissuade a reasonable worker from making or supporting a charge of discrimination. *See Thompson v. North American Stainless, LP*, 562 U.S. 170 (2011).

49. A causal connection exists, established by the extreme temporal proximity of 2 hours and 41 minutes.

50. But for Plaintiff's protected activity, the adverse actions would not have occurred.

COUNT III – AGE DISCRIMINATION (ADEA)

52. Plaintiff incorporates the allegations in the preceding paragraphs.

53. Plaintiff, age 49, is a member of the class protected by the ADEA.

54. Defendants subjected him to adverse employment actions because of his age.

COUNT IV – DISABILITY DISCRIMINATION (Rehabilitation Act)

55. Plaintiff incorporates the allegations in the preceding paragraphs.

56. Plaintiff is a qualified individual with a disability (Diabetes Mellitus Type 1).

57. Defendants failed to provide reasonable accommodation or engage in the interactive process and subjected him to adverse actions because of his disability.

COUNT V – FMLA INTERFERENCE AND RETALIATION

59. Plaintiff incorporates the allegations in the preceding paragraphs.

60. Plaintiff was an eligible employee entitled to FMLA leave for a serious health condition.

61. Defendants interfered with his FMLA rights by deliberately delaying the processing of his request and denying timely reinstatement and retaliated against him for exercising these rights.

COUNT VI – WHISTLEBLOWER RETALIATION (WPA)

63. Plaintiff incorporates the allegations in the preceding paragraphs.

64. Plaintiff made protected disclosures under 5 U.S.C. §§ 2302(b)(8)-(9).

65. In response, Defendants took prohibited personnel actions against him. The causal connection is established by temporal proximity and the lack of a legitimate-interest analysis. *See Kewley v. Dep't of Health and Human Servs.*, 153 F.3d 1357 (Fed. Cir. 1998).

COUNT VII – DUE PROCESS VIOLATIONS (CSRA)

67. Plaintiff incorporates the allegations in the preceding paragraphs.

68. As a career federal employee, Plaintiff has a property interest in his employment.

69. Defendants deprived him of this interest by placing him on a constructive suspension exceeding 14 days without the procedural due process guaranteed by 5 U.S.C. § 7513(b), including written notice of charges and an opportunity to respond.

COUNT VIII – VIOLATION OF THE RELIGIOUS FREEDOM RESTORATION

ACT (RFRA)

71. Plaintiff incorporates the allegations in the preceding paragraphs.

72. Defendants' actions in forcing Plaintiff onto indefinite non-duty status constitute a substantial burden on his sincere religious exercise of his duty to work.

73. This burden was not the least restrictive means of furthering a compelling governmental interest.

COUNT IX – VIOLATION OF THE FIRST AMENDMENT (Free Exercise Clause)

76. Plaintiff incorporates the allegations in the preceding paragraphs.

77. Defendants' actions were not neutral or generally applicable but instead targeted Plaintiff's ability to engage in his religious practice of work, impermissibly coercing him into conduct that violates his religious beliefs.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff Kevin D. Turnage respectfully requests that this Court enter judgment in his favor and grant the following relief:

A. A declaratory judgment that the acts and practices of Defendants violated federal law,

B. A permanent injunction ordering Defendants to reinstate Plaintiff, cease all retaliatory and discriminatory actions, and expunge all related negative records from his personnel file;

C. An award of back pay, front pay, and all lost wages, seniority, and benefits, with interest.

D. An award of compensatory damages for emotional distress and reputational harm;

E. An award of punitive damages as authorized by statute.

F. An award of reasonable attorney's fees and costs pursuant to 42 U.S.C. § 2000e-5(k), 28 U.S.C. §§ 2412-2413, and any other applicable statutes; and

G. Such other and further relief as the Court deems just and proper.

JURY DEMAND

Plaintiff hereby demands a trial by jury on all issues so triable.

DATED this 5th day of March 2026.

Respectfully submitted,

/s/ Kevin D. Turnage

Kevin D. Turnage

Plaintiff, Pro Se

CERTIFICATE OF SERVICE

I hereby certify that on this 5th day of March 2026, I will electronically file the foregoing with the Clerk of the Court using the CM/ECF system, which will constitute service upon all parties of record.

/s/ Kevin D. Turnage

Kevin D. Turnage

Plaintiff, Pro Se